MIDDLESEX UNIVERSITY

FITNESS FOR PRACTICE POLICY AND PROCEDURES

Academic Year 2024-2025

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Introduction

In situations where there is a cause for concern for a student, the University has established a procedure to direct staff to the most appropriate route for consideration of further action: https://unihub.mdx.ac.uk/support/care-and-concern.

The Care and Concern Procedure comprises three stages and acts as an over-arching procedure directing staff, following referral, to the most appropriate University policy or procedure, namely:

- Fitness to Study Policy;
- Fitness for Practice Policy and Procedures;
- Student Conduct and Discipline Procedure;
- Safeguarding Policy/Procedure.

For example, breaches of the regulations in relation to student conduct, discipline and behaviour will normally be considered within the auspices of the regulations, together with any specific academic programme policy. This includes any referral and/or complaint from an external party

This document forms the University Fitness for Practice Policy and Procedure.

The Faculties have responsibilities to ensure that students on professionally recognised programmes meet certain expectations and are 'Fit for Practice' (FfP). This is particularly the case for programmes leading to registration or enhanced status with a professional body. For some disciplines there is a statutory obligation to consider FfP and in many subjects there is also a contractual responsibility to ensure that our students, on registration, are employable at an appropriate level of practice. Thus there are occasions when we are required to exercise professional judgement, outside of the normal assessment and/or disciplinary processes of the University, on whether an individual meets FfP requirements. Such decisions need to be made either at recruitment, or during the programme when concerns might be raised and bring into question an individual's FfP.

There may be occasions when serious breaches of conduct or discipline expectations are referred to the FfP process directly. Such information is provided in the annexes to this document as relevant to each professional discipline. This may be additional to a University process. It should be noted that whilst the FfP panels will respect the outcomes of the University's processes, issues of FfP may well take precedence and result in additional or alternative action.

In order to manage this process, the University has established various Subject FfP Committees to consider FfP issues (see section 3.0):

- The **Faculty Fitness for Practice** Committee which considers strategic issues across the disciplines and receives regular reports of FfP cases.
- Professional discipline **Subject FfP Committees** which allow for interpretation of professional requirements and expectations at a discipline level.
- **Case-panels** which consider individual student cases.

This policy and associated procedures cover a diverse range of programmes at undergraduate, postgraduate, CPD and doctorate levels, including, but not exclusively:

- Education – initial teacher training
- Nursing and Midwifery
- Social Work
- Veterinary nursing

The policy and procedures include a main section that provides guidance as to how FfP issues are managed, monitored and audited within the Faculties and annexes (attached A to C) which are discipline and professional area specific. Issues of FfP for registered practitioners of a non-academic nature, including those of post qualifying courses, should be dealt with through the relevant employer professional body's FfP arrangements, where applicable, If non-academic related FfP issues arise, the relevant professional representatives within the School may refer the matter to the partner/employer or professional body.

These policies and procedures also cover partners and sub-contracted organisations engaged in delivering University, professional recognised programmes.

2.0 Assessment

In the context of this policy and procedures guide, the three main categories of FfP concerns are:

- **Competence** – this is, in the main, judged through the assessment process. If issues of competency and/or safety occur within a practice placement prior to, or after, the final point of assessment, then a FfP investigation may be required.

- **Conduct** – if students do not follow their professional body code of conduct they may be guilty of misconduct – this may be reflected in a criminal conviction or caution, disciplinary action or complaint from service users, placement provider staff, university staff or other students.

- **Health** – for some programmes good health is necessary to undertake practice in a way that is safe and effective, with reasonable adjustments as necessary Concerns may be raised if there is a long-term untreated or unacknowledged/previously undisclosed physical or mental health condition which may impact on practice, including abuse of, or dependence on, drugs and alcohol or where a previously disclosed condition gives rise to concern about a student's practice that cannot be managed.

FfP will be assessed on an on-going basis as an integral part of professional programme assessments. There will be specific requirements for the assessment of practice placements. Academic staff and information provided in the programme handbooks will clarify the precise requirements as practice assessments are usually built into the normal assessment process. Information provided to students will identify the circumstances where assessment issues may lead to referral on FfP issues. When concerns are raised about a student's FfP that lead to termination of their placement by the

placement provider, this may result in an investigation in order to collate evidence for any FfP proceedings. (Please see the relevant annexes for more discipline related information).

It should be noted that breaches of relevant professional programme codes of conduct related to assessment will be reported to the appropriate FfP panel for a decision regarding whether there is an issue of professional suitability of the student for continuation on their programme.

In the case of academic misconduct/plagiarism, this is not usually a matter for an FfP panel, instead such evaluation is made by the Director of Programmes in conjunction with an investigation and a ruling by Academic Registry. However, students on regulated courses which fall within the scope of the FfP Procedure should be aware that if a finding is made against them under any University policy or procedure, it may be necessary to give consideration as to whether the finding gives rise to a concern for the student's fitness for practice. If so, the student will be notified of the referral to this FfP Procedure for any fitness for practice issues to be addressed.

3.0 Principles on which the FfP Committees operate

Care and Concern has a strategic overview of all FfP issues raised across the University's professional programme portfolio. Given that there are many specific, discipline and profession related requirements within that portfolio, they will delegate responsibility to investigate and determine referrals on its behalf to FfP Committees who will consider FfP issues at an operational level specific to a particular professional area. The Subject FfP Committee will establish 'Case-panels' in order to consider individual referred cases. Subject FfP Committee and Case-panels will normally be chaired by the relevant designated professional lead or a nominee from the relevant professional programme.

The purpose of the FfP procedures is to:

- Allow a proper investigation of any FfP concerns that may be raised.
- Promote, uphold and ensure compliance with appropriate codes of conduct for students.
- Provide the opportunity for referral of a student to an established FfP process or for the provision of advice and guidance from the relevant Subject FfP Committee.
- Protect users within clinical/practice settings (and users of the future).
- Maintain public confidence in the profession.

The Subject FfP Committee and Case-panels will operate to the following principles in that they will:

- Be transparent, fair and consistent in the way in which professional judgements on FfP are made.
- Work in conjunction with the Regulations of the University.
- Make judgements with the assistance of representatives of the academic community and stakeholder partners where possible.
- Make judgement on the basis of any externally published guidance on professional conduct for students from specific professional bodies.
- Utilise as a standard of proof 'balance of probability' in that a fact will be established if it is more likely than not to have happened.
- Enable decisions to be made in a timely manner.

- In normal circumstances allow any disciplinary processes to be complete before considering FfP issues.
- Allow for students to receive appropriate advice and guidance throughout any FfP procedures and, where appropriate, allow for an appropriate appeals process. (See student guidance in Appendix 2).

4.0 Membership of the Faculty FfP committee

- Deputy Dean, or nominee as Chair
- Chair of each Subject FfP Committee (a designated professional lead)
- At least 1 and no more than 3 stakeholder partner representatives
- FfP Officer
- MDXSU Representative
- Up to 2 academic staff may be co-opted as necessary

The Faculty FfP Committee will meet twice per year to review the work of the Subject FfP Committees, discuss policy issues and make policy decisions. Meeting arrangements for Subject FfP Committees will vary according to need. Case-panels, as appointed by Subject FfP Committees, will meet as necessary to consider FfP referrals.

4.1 Membership of Subject FfP Committees and Case-panels

The Subject FfP Committees will be required to reflect the needs of a professional area, including the requirements of professional bodies if these are specified. Each Subject FfP Committee will appoint a Chair and at least one deputy Chair. The appointment of the Chair may be determined by the requirements of a professional body. Membership of Subject FfP Committees and Case-panels will vary according to professional requirements. Details of such membership can be found in the attached annexe for each subject area

As a matter of principle, investigators and referrers to a FfP Case-panel will not be part of any further decision-making process, save for their report, statements and recommendations submitted as evidence.

4.2 Terms of reference

With the support of key colleagues with responsibility to professional bodies for student FfP, the Faulty FfP Committee and Subject FfP Committees together are responsible for:

- Providing professional judgements on applicants'/students' fitness for practice where issues falling outside of existing admissions, assessment and disciplinary procedures are identified.
- Recording and monitoring the cases that are dealt with by the panel and Subject FfP Committee.
- Advising on policy and/or procedural amendments as appropriate.
- Providing professional advice on FfP issues to Faculty staff.

Additionally, the Subject FfP Committee will be required to report and review on their activities to the Faculty FfP Committee. The Faculty FfP Committee will then use these reports to undertake a review of the appropriateness of their subject annexes, normally for September of each year.

As an annexe to this document, each Subject FfP Committee shall provide a separate document which clarifies further:

- Details of membership of the Subject FfP Committee and how Case-panels are constituted.
- any additional Terms of Reference required by relevant professional bodies (as approved by the Faculty FfP Committee).,
- Any specific modes of operation as required by professional bodies.
- Arrangements for reporting and review of activities, as required by professional bodies or internal good practice.
- Who within the professional area is responsible for determining whether a referral falls under the auspices of the FfP arrangements and guidance as to how such decisions are made.
- Any particular additional requirements of the professional body in assessing FfP
- A copy of the relevant Student Code of Conduct.

4.3 Mode of operation

Students may be passed on to the FfP process from a variety of sources (academic staff, clinical staff, administrative support staff, members of the public, fellow students etc.). Information alleging a FfP matter will not normally be accepted if made on an anonymous basis, although could be a trigger to undertake an investigation in finding alternative ways in which to verify the anonymous claim

FfP matters will be considered according to a number of phases (see Appendix 2 for a flow-chart of the process)

Screening

Initial screening will be undertaken by the Care and Concern team of the University. The Care and Concern team is made up of representatives from the University support services who will make a holistic assessment of the FfP referral. As part of this screening, they will review the FfP referral to assess whether there is **1.** alternative action required and/or **2.** if there are any safeguarding or support needs contained within it.

The decision will be informed by the information from the programme team.

If a FfP matter is not confirmed, the Care and Concern team, in conjunction with the Programme Leader (PL), will advise the student of the matter and provide any guidance in terms of, for example, future conduct, as appropriate or invoke the alternative action as agreed by the Care and Concern team. If it is agreed it should be handled under a different policy, e.g. Fitness to Study, the student will be advised of this. Any written informal guidance that has been provided will be retained for the duration of the student's studies.

Investigation

If a FfP matter is confirmed and an investigation has not already taken place the PL will undertake a full investigation (or allocate a named individual to do so), obtaining appropriate statements and other forms of evidence as appropriate.

The PL should go to Student and Legal Affairs for advice and not the Chair of the FfP case panel

Prior to the commencement of the investigation Raising Concerns notification will be sent to the student advising them that a concern has been raised regarding their FfP. This will outline the concern, the next steps and include guidance and support that will be available to the student (see Appendix 2).

The investigation may include interviewing of students and witnesses. The PL will arrange for a note-taker at interviews who will provide a summary for agreement between the parties. Students will be given reasonable time to agree to the content of the notes of any meeting/interview. A nil response will be taken as acceptance that they are a true record.

Students may be accompanied at any interviews by a friend, representative of a professional body or a representative of MDXSU. Legal representation is not normally allowed.

As part of the investigation, any statements obtained must include the full name of the witness, their role, a concise but detailed explanation of their evidence and be signed and dated. A pro-forma Statement of Evidence is provided in Appendix 4 and guidance on a useful investigative approach is provided in Appendix 5 (a).

The investigator will then supply an evidence report to the FfP Officer.

The intent will be to complete the screening, investigation and review within 20 working days of the initial notification to the student of the matter whereupon the student will be informed of the next steps. Certain complex cases, or where there are circumstances beyond the control of the investigator, may require longer. If there is a delay, the student will be notified in writing of the expected date of completion of this stage.

Referral

Upon receipt of a referral, the FfP Officer will liaise with the relevant Subject FfP Chair to establish a suitable Case-panel. The FfP Officer will collate the evidence to be reviewed, normally within 5 working days of receipt, before sending a notification letter to the student which will clearly state the matters that constitute the FfP referral linked to the appropriate professional codes and guidance and will request;

- A reflective statement and any evidence that the student wishes to be considered.
- Identification of any evidence that will be challenged.
- Identification of any supporting witnesses that could give evidence.
- Confirmation of acceptance of any evidence that is not being challenged.

The student has 10 working days in which to submit their reflective statement and any evidence. In certain circumstances a student may request an extension to this deadline, which will be considered on a case by case basis.

If a student does not submit their reflective statement within the permitted timeframe and has not requested an extension to the deadline, the case panel may be arranged and proceed without their statement.

If appropriate, and on a case by case basis, the student may be removed from attending practice pending the outcome of any determination.

Once the evidence from both parties has been collated it will be sent electronically to the student and members of the Case-panel.

Hearing

The Chair and any other member of any panel will not have been involved in the investigation process. The investigator will set-out the University's position in terms of the FfP matter. The investigator will then be available for factual evidence enquiries but will not be part of any deliberations nor the decision-making process.

The Case-panel will consider the evidence provided against the standards, Codes of Practice and any additional guidance as indicated in the annexe to this document which might be professional/discipline specific.

Where there is a need for a panel to meet, the student will be invited to attend and may wish to be accompanied by a friend, a representative of a professional union or a representative of the MDXSU in a supportive capacity. Legal representation may only be permitted in cases which potentially may result in very serious consequences for the student. Any request from a student to be legally represented will need to be agreed in advance of the FfP case panel. Where permission is given, consideration will also be given as to whether or not the Case-panel may also require a legal advisor to be present.

(The guidance in Appendix 1 provides further information on the nature of support that can be sourced). A date will be set for the student to respond, not less than 10 working days from the notification letter as sent to their University e-mail account. A panel will not normally accept further evidence from the student following this date.

A student will have the option of attending the panel in person, either online or on campus. Alternatively, they can opt for electronic review, which is panel members reviewing the case electronically and the student is not present. If this is the preferred option, the formal outcome letter will be issued by the Chair and the student will have the opportunity to appeal any decision.

If a student has opted for an in person panel (either online or on campus) they can apply for a deferral by providing reasons to the FfP Officer at least 48 hours prior to the hearing. It will be at the Chair's discretion whether to grant a deferral. If a student does not give notice of

non-attendance and chooses not to attend a hearing it will normally proceed to a conclusion in their absence.

For all panels, in person and electronic, members and students will be provided with the same information and documentation which will be circulated in advance of any hearing. The hearing will consider evidence provided related to the referral but may also consider new evidence that emerges and that has a bearing on the FfP of the student. The student will be given an opportunity to address any such emergent evidence.

It will not be expected for witnesses to an alleged FfP issue(s) to attend the panel hearing, unless there has been notification that their evidence has been challenged. Normally, their signed statements will suffice. A panel meeting will be held within 15 working days of their receipt of the case documents but this is subject to member availability and witness management arrangements, should the student contest the case. Students will be advised if this period needs to be extended. Following a panel hearing, a formal outcome letter will be issued to the student within 5 working days.

The Chair will retain a casting vote should the panel be unable to agree a unanimous or majority decision.

All case outcomes are reported back to, and monitored by, the Subject FfP Committee to aid consistency of approach.

5.0 Outcomes of referrals to FfP

Panels will follow the general principle of proportionality for decision making, imposing sanctions on the basis of the nature of any FfP determination.

A FfP Case-panel who are considering:

- Whether the FfP of a student who has been referred to the panel is impaired on the grounds of inappropriate conduct and/or competence or other reasonable grounds such as are covered by this policy and accompanying annexes,
- Whether the FfP of a student is impaired due to health/disability, and have had independent verification of that health or disability issue

can make one of following decisions based on the principles of proportionality and with sanctions considered on a stepped approach increasing in severity according to the nature of the determination:

- That the student may continue without any further action.
- To recommend that the student is allowed to continue on the professional programme with specified conditions and review dates.
- To suspend and/or interrupt the student pending specified conditions are met within a defined time-line.
- To recommend that the student is withdrawn from the professional programme. In this case the applicant/student will be invited to discuss their options for transferring to another non-professional programme.

In certain circumstances, when conditions have been attached to continuation on the programme, students may be asked for their permission to share these conditions with a placement provider. If such permission is not granted, the student should be aware that they may not be able to continue on the programme at the discretion of the placement provider.

In the instance where a student is allowed to continue on the programme with specified conditions and the student does not fulfil this and/or the specified conditions are not met satisfactorily, a student will normally be given one further opportunity to complete the specified conditions. If one or more conditions are still not met by the required deadline, the case will be referred back to the original FfP in order for the panel to consider appropriate next steps in terms of non-compliance. The student should be aware that this may vary the original outcome.

Where it is in the student's interest, following completion of the panel procedure, the Chair of the Case-panel may choose to provide a brief verbal summary of the determination of the hearing but is not obliged to do so. A determination letter will follow, normally within 5 working days of the panel meeting which will provide detail of the panel's findings related to the relevant professional codes and guidance, providing reasons for their judgements.

Case-panel Chairs should provide a summary of the outcome of their deliberations to the Chair of the relevant Subject FfP Committee. The FfP Officer will notify all necessary parties within the University as appropriate, particularly in the case of discontinuation (e.g. Academic Registry).
In the case that a student has been discontinued, notification of this will not be made and the discontinuation will not be activated until after the deadline for Appeal has passed (15 working days). If a student does submit an appeal, the discontinuation will not be activated until after the appeal has concluded.

The FfP Officer should also keep due records of all decisions and actions taken. The Subject FfP Committee will be required to provide a formal annual report to the Faculty FfP Committee on the number, nature and decisions made by Case-panels under its remit.

Students will have the right of appeal against any determination of FfP (in accordance with guidance in section 6.0 below).

The letter sent to the student advising them of a Case-panel decision should provide further information regarding rights of appeal.

6.0 Appeals

A student has the right to appeal against a decision of a FfP Case-panel. The Chair of the Faculty FfP Committee, or a member of the Faculty Leadership team, will determine if the grounds for appeal are justified. All appeals must be made through the FfP Officer. An appeal must be submitted within 15 working days of the date that the outcome letter was e-mailed/sent to the student.

An appeal against a decision of a FfP Case-panel can only be made on the grounds that:

I. The FfP process, including any consideration of proportionality in the determination, was not run in accordance with the agreed policy.

II. There was an administrative error affecting the outcome.
III. There is additional and relevant evidence that was not seen or was not available at the time the decision was made.

Where the FfP decision was discontinuation, a student is normally allowed to continue with their studies whilst an appeal is ongoing. However, they would **not** normally be permitted to continue on any practice placements during this time.
In the case of an appeal being allowed by the Faculty Leadership team, the FfP Officer will convene an Appeals panel to review the original decision in the light of any new information. The Appeals panel will normally be convened within 20 working days of the decision to allow the appeal. The membership of the Appeals panel will include those with appropriate professional knowledge, external parties, a chair of a non-professionally relevant Case-panel and one representative of the original Case-panel responsible for the decision who will be expected to provide clarification for that original decision.

Documentation from the first FfP Case-panel will be reviewed alongside any new evidence. The student will be invited to attend, but attendance is not mandatory. The student may be accompanied by a friend, professional union representative or representative of MDXSU. Legal representation may only be permitted in cases which potentially may result in very serious consequences for the student. Any request from a student to be legally represented will need to be agreed in advance of the Appeal panel. Where permission is given, consideration will also be given as to whether or not the Appeal panel may also require a legal advisor to be present.

If the student chooses not to attend, then the panel will make a decision based solely on the evidence submitted. It should be noted that an Appeals panel may uphold the original decision.

Where there is any potential conflict of interest, the Appeals panel will be independently chaired by the Chair of the Faculty FfP Committee or an equivalent senior academic manager.

Following the outcome of the appeal, unless there are further outstanding matters to consider under the University's regulations, a Completion of Procedures letter will be provided as required by the Office of the Independent Adjudicator (OIA). This letter will normally be issued within 5 working days from the date of the Appeals panel

Information regarding the role and support provided via the OIA can be found at http://www.oiahe.org.uk/

July 2023

Appendices:

Appendix 1: Guidance for Students about whom Fitness for Practice Concerns Have Been Raised

Appendix 2: Fitness for Practice Flow-chart

Appendix 3: Pro-forma Statement of Evidence

Appendix 4:

- **4(a)**: Possible investigative approaches
- **4(b)**: Template for investigation report

Subject-specific annexes

Annexe A: Annexes Relevant to Education students

Annexe B: Annexe Relevant to Nursing and Midwifery students

Annexe C: Annexe Relevant to Veterinary Nursing students.

Annexe D: Annexe Relevant to Social Work students

Annexe E: Annexes Relevant to Faculty of Science and Technology

Appendix 1

Guidance for students when concerns have been raised about their fitness for practice

1.0 Introduction

The University's expectations regarding student conduct is clearly outlined in the University Regulations, but additional requirements apply to students on professional programmes such as Nursing, Veterinary Nursing, Midwifery, Teaching and Social Work. Students on these programmes must also meet the requirements of the relevant professional body – for example, the Nursing and Midwifery Council (NMC) for Nursing and Midwifery students, the Social Work England (SWE) for Social Workers, Royal College of Veterinary Surgeons (RCVS) for Veterinary Nurses and the National College for Teaching and Leadership (NCTL) for trainee teachers. The Faculty of Health and Education has established a 'Fitness for Practice' panel that oversees the fitness for practice of students on professional programmes. A FfP Committee is responsible for managing fitness for practice concerns raised about students studying on professional programmes. The aims of the Fitness for practice process are to:

- Protect the public
- Uphold professional standards
- Maintain public confidence in the profession
- Support the student

2.0 Categories of Fitness for practice concerns

The three main categories of Fitness for practice concerns are:

- Competence – this is, in the main, judged through the assessment process. If issues of competency and/or unsafe practice occurs within a practice placement prior to the final point of assessment, then a fitness for practice investigation may be required.

- Conduct – if students do not follow their professional body code of conduct they may be guilty of misconduct – this may be reflected in a criminal conviction or caution, disciplinary action or complaint from service users, placement provider staff, university staff or other students.

- Health – good health is necessary to undertake practice in a way that is safe or effective. Concerns may be raised if there is a long-term untreated or unacknowledged physical or mental health condition, including abuse of or dependence on drugs and alcohol.

3.0 The Fitness for Practice Process

3.1 Screening

Any Fitness for Practice (FfP) issues that have been raised will be considered within the University's Care and Concern procedures. If it is considered that a FfP investigation is appropriate, rather than another University procedure, the details will be passed to the relevant Programme Leader for their

consideration. In such cases, a 'Letter of Concern' will be sent to you which will provide information as to the next steps in the process and further information about help that can be sourced.

If a concern has been raised regarding your Fitness for practice, you will be told exactly what that concern is.

3.2 Investigation

The investigation will be undertaken, usually by your programme leader, but possibly another member of the academic team or as appropriate to the professional discipline. If there are any concerns about your health, this may require an occupational health assessment. You will have the opportunity to discuss the concerns that have been made, provide your own statement and/or any supporting evidence you wish to be considered. You will be advised on the sources of support you can access during the investigation and will be given a copy of the report. In almost all cases you would be allowed to continue on your programme during the investigation. In exceptional cases, we may require you to defer your placement if there is a risk to you or others.

The investigation report will be reviewed, normally by a relevant Director of Programmes or another academic as appropriate. At this stage it will be confirmed whether the reviewer considers the investigation report confirms a FfP matter or whether it should be dealt with by an alternative process e.g. complaints or disciplinary procedures. You will be informed of the decision by the reviewer. We aim to complete both investigation and screening within 20 working days, but if this is not possible, we will write to you and inform you when we expect the investigation and screening stages to be completed, and inform you of the next steps.

3.3 Referral

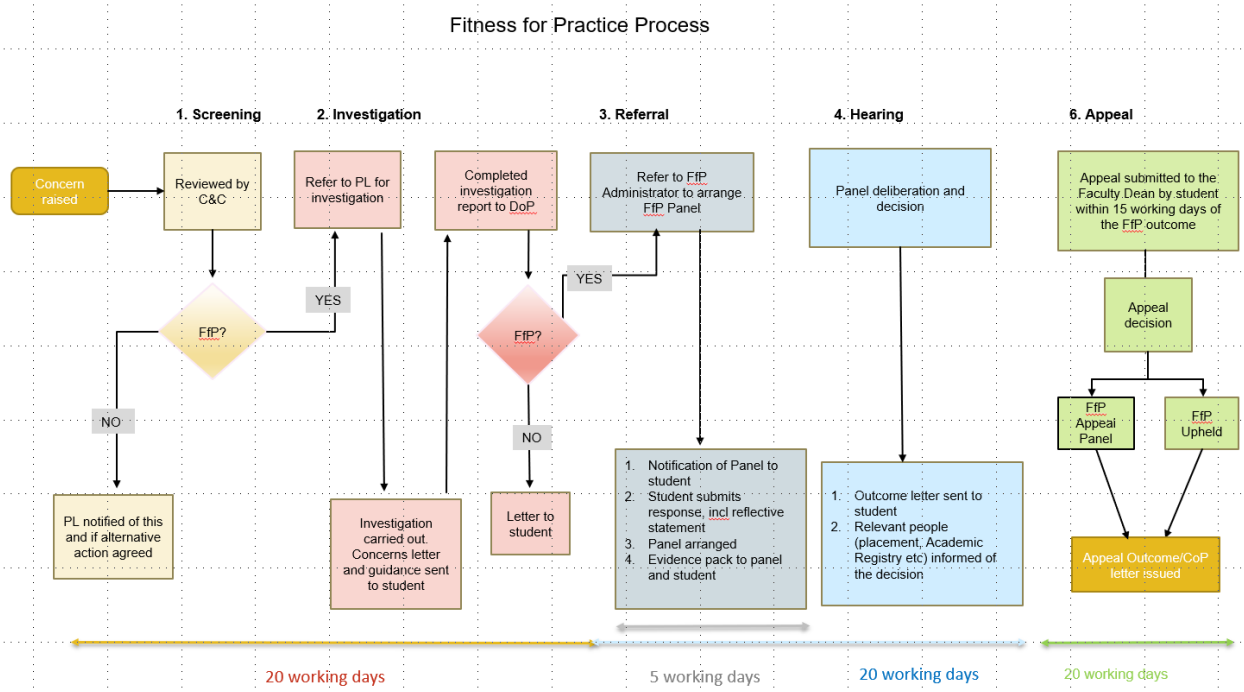
If a formal referral is made to the FfP Case-panel you will receive a formal notification within 5 working days, from the FfP Officer outlining the matter. With this letter will be the evidence that will be considered. You will be asked to submit a reflective statement, any other evidence you wish the panel to review and to confirm if you wish to challenge any of the evidence you have been sent, by a date to be set by the University, not less than 10 working days after the referral notification being made via your University email account. You will also be asked if you wish to attend the panel in person panel, either online (virtually) or on campus, or if you would prefer to have an electronic panel (this is where the panel review your case electronically without you present) You will also be advised on the sources of support available to you to prepare for the panel meeting and present your case, either in writing or in person. The relevant policy will be enclosed with this notification letter, and you will be informed of your right to be represented by your union, or be accompanied by a friend, or representative of the MDXSU. Legal representation may also be permitted. Panel hearing

If a panel hearing is arranged, and should you choose to attend, you will be introduced to the panel members, and the investigator will outline the cause for concern and the evidence to support this. You will be given the opportunity to state your case, and your representative can support you in doing this. The panel members will ask questions to explore and clarify issues relating to the cause for concern. Following the panel meeting the panel will make a decision which will be explained to you in a determination letter that will be sent as soon as possible, no longer than 5 working days after the panel meeting. The possible outcomes of any Fitness for Practice panel meeting are:

- Your Fitness for Practice is not impaired, and you will continue on your programme. In some cases there may be conditions to be met within a given timescale.
- Your Fitness for Practice is temporarily impaired, this may require a temporary interruption from your programme, with conditions to be met prior to your return to the programme.
- Your Fitness for Practice is permanently impaired, and you will be discontinued from your programme. You will be advised on options for transferring to a non-professional programme.

In certain circumstances, when conditions have been attached to continuing on the programme, you may be asked for your permission to share these conditions with a placement provider, and if permission is not granted, then it may be the case that you may not be able to continue on the programme.

Appendix 2


Fitness for Practice Process
1. Screening
2. Investigation
3. Referral
4. Hearing
6. Appeal
Concern raised
Reviewed by C&C
FfP?
YES
NO
PL notified of this and if alternative action agreed
Refer to PL for investigation
Investigation carried out. Concerns letter and guidance sent to student
Completed investigation report to DoP
FfP?
YES
NO
Letter to student
Refer to FfP Administrator to arrange FfP Panel
1. Notification of Panel to student
2. Student submits response, incl reflective statement
3. Panel arranged
4. Evidence pack to panel and student
Panel deliberation and decision
1. Outcome letter sent to student
2. Relevant people (placement, Academic Registry etc) informed of the decision
Appeal submitted to the Faculty Dean by student within 15 working days of the FfP outcome
Appeal decision
FfP Appeal Panel
FfP Upheld
Appeal Outcome/CoP letter issued
20 working days
5 working days
20 working days
20 working days

Appendix 3

Fitness for Practice – Statement of Evidence

Student name to which this evidence refers:

Middlesex University Student Number (if known):

Full name of witness making statement:

Position/role:

Contact e-mail and telephone number:

The 'Statement'

(Please provide a concise statement of your evidence focusing on the Fitness for Practice issue of concern. Please be aware that this statement could be used in any Fitness for Practice case).

Signature:

Date:

Appendix 4

5(a) Investigative approach

(With acknowledgement to Manchester University and Fieldfisher law firm)

The following key stages of **ASPIRIN** are recommended as part of any investigation:

A – Assess the situation and gather initial evidential materials

S – Subject interviews – establish first hand evidence if possible

P- Pose appropriate questions – seek to establish both evidence for and against the matters being

of relevant for a FfP referral

I – Information collection

R – Review the information that has been collected and re-investigate as needed

I – Initiate a referral

N – Notify relevant people in the organisation

5 (b) – Investigation Report Template

The following headings could be used to create an investigation report;

1. An outline of the student, their programme stage of study, past results, attendance and other relevant academic background.

2. Details of the alleged Fitness for Practice matter

3. A review of the evidence collated, witnesses interviewed and statements received with a summary of the key elements

4. Contributory and mitigating factors on behalf of the student which may be considered as part of any determination.

5. The implications for the student's study pathway

6. Recommendations to the case-panel

7. Suggested communication process to all interested parties

Annexe A – Education Department

Annexe A.1 – Education Fitness for Practice Sub Committee

Annexe A.2 – Suitability To Teach/Practice Panel Terms of Reference

Annexe A.3(a) – Code of Conduct for Initial Teacher Trainees

Annexe A.3(b) – Code of Conduct for Early Childhood Student Practitioners

Annexe A.4 – Dress Code for Professional/Educational Settings

Annexe A.5 –The School-based Training (SBT) panel

Annexe A.1 – Supplementary Information relevant to the operation of the Education Fitness for Practice sub-panel

The operation of the Education Fitness for Practice sub-panel is informed by the DfE Keeping Children Safe in Education document
chrome-
https://assets.publishing.service.gov.uk/media/6650a1967b792ffff71a83e8/Keeping_children_safe_in_education_2024.pdf

1.0 Standards of professional conduct

Programme	Conduct guidance
Primary ITT (QTS) BA Primary PGCE Primary Salaried ITT PG Teacher Apprenticeship	Teachers' Standards http://www.education.gov.uk/schools/teachingandlearning/reviewofstandards Code of Conduct and link to Fitness for Practice Policy and Education Annexes can be found in Programme Handbooks and on UNIHUB
Secondary ITT (QTS) PGCE Secondary (all subjects) Salaried ITT PG Teacher Apprenticeship	Teachers' Standards http://www.education.gov.uk/schools/teachingandlearning/reviewofstandards Code of Conduct and link to Fitness for Practice Policy and Education Annexes can be found in Programme Handbooks and on UNIHUB
BA Early Childhood Studies **Early Years Professional Practice**	Early Childhood Studies Degree Network Graduate Practitioner Competences https://www.ecsdn.org/competencies/ Code of Conduct and Fitness for Practice can be found in Programme Handbooks and UNIHUB Statutory Framework for Early Years Foundation Stage Section 3.9 https://www.gov.uk/government/publications/early-years-foundation-stage-framework--2

2.0 Education Professional Programmes - Fitness for Practice sub-committee membership. A case panel would be convened from this membership to consider a case identified as a FfP matter.

- Head of Education (Chair) and/or member of the School of Health and Education Leadership team to act as chair

- Head of ITT or DoP Early Years Practice (Deputy Chair)
- 2 members of academic staff from professional programmes (minimum) and/or member of the Education Leadership team
- Partnership representative (in attendance where possible)
- FfP Officer – Officer to sub-committee

3.0 Arrangements for reporting and review of activities

A report of the activities of the Education Fitness for Practice sub-committee will be undertaken at the end of each academic year and reported in the relevant quality monitoring reports and to the Partnership Steering Group. Reports will also be submitted to the School of Health and Education Fitness for Practice Committee. A summary report will be extracted from the various reports and held in readiness for 2 day notice Ofsted Inspections.

4.0 Authority for determining whether a referral falls under the auspices of the FtP arrangements

Students will be recommended for referral to the Fitness for Practice sub-panel following a referral to the Care and Concern Team by either an Assessment Board or by a Director of Programmes / Programme Leader if the concerns arise in between assessment periods.

5.0 Requirements of the Department for DfE in assessing Suitability to Teach

For ITT, the DfE ITT Criteria and Supporting Information. Statutory guidance for assessing suitability to teach provides the statutory guidance for assessment of suitability to teach.

https://assets.publishing.service.gov.uk/media/64ef61b813ae15000d6e30c1/Initial_teacher_training_criteria_and_supporting_advice_2024_to_2025.pdf

Annexe A.2 – The Suitability to Teach/Practice (DBS/Health and Disability) Panel Terms of Reference (Education)

1.0 Introduction

The Suitability to Teach Panel functions as a sub-panel of the Education Fitness for Practice sub-committee and is established to provide a consistent approach across the programmes with regard to the management and support for students with a disability or health issue (as identified by Occupational health) and for consideration of any recorded information on a DBS certificate.

2.0 Principles of Operation

The Health and Disability Panel aims to ensure that:

- The University complies with its duty of care to students and to those with whom they come into contact
- The University complies with the requirements of the Disability Discrimination Act
- Students / prospective students with health and disability issues are not disadvantaged, nor put at risk
- Students/ prospective students health and disability issues are treated with transparency and fairness
- The University complies with its duty of care and considers any recorded information on a student / prospective students sensitively and confidentially with due regard to DfE Keeping Children Safe in Education https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/1181955/Keeping_children_safe_in_education_2023.pdf

3.0 Terms of reference

- To ensure that students with health and disability issues are given appropriate support and all reasonable adjustments are made to support them on their programme.
- To regularly review students with health and disability issues affecting their programme, and maintain confidentiality of such discussions.
- To support programme leaders with the monitoring of individual students.
- To ensure parity and fairness of approach to all students
- To consider occupational health reports that make recommendations and require adjustments in their programme, including practice placements, taking Fitness for Practice into consideration.
- To refer cases to the Fitness for Practice Panel where occupational health report recommendations cannot be accommodated.
- To refer student cases to the Fitness for Practice Panel where recorded information on a DBS is a concern and continuation on the programme is at risk. Prospective students are not referred for a Fitness for Practice investigation.

4.0 Mode of Operation

The Chair convenes a sub-panel of members of the Education FfP sub-committee to review any Occupational Health and DBS Reports that require consideration. The panel meets as required to review all cases but the majority of the work will happen as part of the recruitment cycle, during induction and following annual re-affirmation for (undergraduates only). If suitability for teaching/practice is in doubt as a result of consideration of information on DBS or OH related matters, then offers might be withdrawn.

Membership (Chair)

- Head of ITT
- A Director of Programmes
- Programme Leaders of the person(s) concerned
- A member of the Education Leadership Team (in addition to the Chair)
- Members may also be co-opted for specific advice, e.g. from the University Disability Support Unit.

Annexe A.3(a) - Code of Conduct for Initial Teacher Trainees

1.0 Code of Personal and Professional Conduct for Trainee Teachers:

Excellence in Professionalism

This Code of Conduct covers school and university-based training for all trainee teachers within the Middlesex University ITT Partnership. It is underpinned by and supplements Part 2 of the Teachers' Standards (DfE, 2012).

This code of conduct has been agreed across the University in consultation with the partnership and it sets out the standards that you are expected to work to during your training programme.

This code is based on the guiding principle of protecting pupils and it mirrors the standards that are expected of all the teachers that you will work alongside.

All trainee teachers within the Middlesex University ITT Partnership are expected to demonstrate

consistently high standards of personal and professional conduct by:

1. Becoming familiar with, respecting and adhering to all relevant statutory frameworks, university policies and documentation and the policies and practices of partnership schools in which they teach;
2. Prioritising the health, welfare and education of the pupils in their care;
3. Demonstrating respect for others: including pupils, colleagues, all school and university staff, staff from other agencies, parents and carers;
4. Promoting equality of opportunity, challenging stereotypes, opposing prejudice and respecting individuals regardless of age, disability, gender identity, parental status, marital status, race, ethnicity, religion, sex, social class, or sexual orientation;
5. Acting with honesty and integrity and ensuring that any activity in one's personal life, including use of any social networking sites, does not risk bringing the teaching profession or the ITT partnership into disrepute;
6. Maintaining high standards of attendance, punctuality and engagement in both school and university-based training and strictly adhering to procedures for informing the university and partnership schools of any absences;
7. Maintaining high professional standards of dress and appearance whilst working in schools;
8. Maintaining appropriate professional relationships with pupils, parents, carers and all staff working in schools and to work effectively with colleagues in professional teams;
9. Taking responsibility for their own learning and responding positively to and acting upon advice and feedback from university tutors, mentors and school-based staff;
10. Reporting information honestly and accurately at entry on the Suitability Self-Declaration Form, Fitness to Teach declaration and Occupational Health questionnaire and notifying the university promptly if there are any changes to this information during the programme.

2.0 Teachers' Standards Part Two: Personal and Profession Conduct

Teachers uphold public trust in the profession and maintain high standards of ethics and behaviour, within and outside school, by:

- treating pupils with dignity, building relationships rooted in mutual respect, and at all times observing proper boundaries appropriate to a teacher's professional position

- having regard for the need to safeguard pupils' well-being, in accordance with statutory provisions showing tolerance of and respect for the rights of others

- not undermining fundamental British values, including democracy, the rule of law, individual liberty and mutual respect, and tolerance of those with different faiths and beliefs

- ensuring that personal beliefs are not expressed in ways which exploit pupils' vulnerability or might lead them to break the law.

- Teachers must have proper and professional regard for the ethos, policies and practices of the school in which they teach, and maintain high standards in their own attendance and punctuality.
- Teachers must have an understanding of, and always act within, the statutory frameworks which set out their professional duties and responsibilities.

3.0 What this code means for you

All trainee teachers must do their utmost to comply with this code, and any breach of this code whilst training will be investigated and dealt with by the Programme Leaders and partnership school staff who are required to deal with this under the University Regulations (section on student conduct and discipline) and where appropriate under the Fitness for Practice Policy for the Faculty of Health, Social Work and Education.

Annexe A.3(b) - Code of Conduct for Early Childhood Student Practitioners

1.0 Code of Conduct for Professional and Personal Early Childhood Student Practitioners

This code of conduct covers all placements for student practitioners within Middlesex University. It is underpinned by and supplements the Department for Education (DfE) Statutory Guidance for the Early Years Foundation Stage and Early Childhood Studies Degree Network (ECSDN) Graduate Practitioner Competences.

This code is based on the guiding principle of protecting children and it mirrors the standards that are expected of all the early years practitioners that you will work alongside.

All student practitioners following the Middlesex University BA Early Childhood Studies programme are expected to demonstrate **consistently high** standards of personal and professional conduct by:

1. Becoming familiar with, respecting and adhering to all relevant statutory frameworks, university policies and documentation and the policies and practices of early years settings in which they practice;
2. Prioritising the health, welfare and education of the children in their care;
3. Demonstrating respect for others: including children, colleagues, all setting and university staff, staff from other agencies, parents and carers;
4. Promoting equality of opportunity, challenging stereotypes, opposing prejudice and respecting individuals regardless of age, disability, gender identity, parental status, marital status, race, ethnicity, religion, sex, social class, or sexual orientation;
5. Acting with honesty and integrity and ensuring that any activity in one's personal life, including use of any social networking sites, does not risk bringing early years sector or settings into disrepute;
6. Maintaining high standards of attendance, punctuality and engagement in early years settings and strictly adhering to procedures for informing the university and settings of any absences;
7. Maintaining high professional standards of dress and appearance whilst working in early years settings;
8. Maintaining appropriate professional relationships with children, parents, carers and all staff working in early years settings and to work effectively with colleagues in professional teams;
9. Taking responsibility for their own learning and responding positively to and acting upon advice and feedback from university tutors, and workplace supervisors and staff;
10. Reporting information honestly and accurately at entry on the Suitability Self-Declaration Form, Fitness to Teach declaration and Occupational Health questionnaire and notifying the university promptly if there are any changes to this information during the programme.

2.0 ECSDN Graduate Practitioner Competences

An Early Childhood Student Practitioner is an advocate for young children's rights and participation and recognise that young children are active co-constructors of their own learning. They critically apply high-level academic knowledge of pedagogy and research evidence, to the holistic development of infants and young children (0-8), in a practice context that is respectful of the child, their family and community.

Professional conduct is embedded within these competencies:

1. Listen to and work in collaboration with young children;
2. Support children to respect others;
3. Enable the voice of young children to be heard;
4. Work with others to safeguard and promote the well-being of infants and young children;
5. Communicating and working in partnership with families;
6. Work at creating successful, respectful professional relationships with colleagues and other professionals inside and outside the setting;
7. Demonstrate self-awareness and knowledge of anti-discriminatory practice;
8. Promote social justice and valuing difference including gender, ethnicity, religious affiliation and sexual orientation;
9. Work professionally within the remit of Statutory Framework for the Early Years Foundation Stage.

Annexe A.4 - Dress Code for Professional/Educational Settings/Early Years Settings

Policy: Middlesex University imposes no dress code on its students. It welcomes diversity of appearance in general terms. However, education students and trainee teachers do need to consider the teaching context in which they will work in terms of health and safety and professional appropriateness.

Guidance for trainees on Initial Teacher Training Programmes: Trainee teachers are required (within reason) to follow the dress code of the school setting where they are placed.

Guidance to ensure health and safety

Trainees are expected to change their clothing and footwear in accordance with school Health and Safety guidance for teaching subjects with particular requirements. This could include Physical Education, Science and D & T.

If there is any reason why you may not feel able to comply with any of the above you must discuss this with your Programme Leader immediately. Students or trainees who breach this dress code should be aware that they may be referred to the Fitness for Practice Panel should they refuse to comply.

Guidance for students on BA Early Childhood Studies or other Early Years Professional Programmes.

Early Years Student Practitioners are required (within reason) to follow the dress code of the setting where they are placed.

Guidance to ensure health and safety

Whilst in practice Early Years students are expected to align their clothing and footwear in accordance with school Health and Safety guidance for the setting and appropriate to any required activities.

If there is any reason why you may not feel able to comply with any of the above you must discuss this with your Programme Leader immediately. Students or trainees who breach this dress code should be aware that they may be referred to the Fitness for Practice Panel should they refuse to comply.

Annexe A.5 – The School-based Training (SBT) panel

The SBT panel is convened to discuss progression during and in-between placements in the event of a trainee failing a placement module – or failing to make the expected progress for progression.

The SBT sub-panel is comprised of:

- Chair (Head of ITT)
- Programme Leaders (at least two)
- Phase Leads
- Partnership Member (where possible)

The SBT panel will discuss

1. **Placement module fails**
   If a trainee fails a placement module, either because they have failed to make the response required during the Cause for Concern process or because a school has terminated the school placement, the panel would convene to discuss and agree the outcome. The outcomes could be:

   - Extend the placement module with additional weeks subject to whether the timing will allow this and availability of a suitable school setting. The length of extension and timing of it will be at the discretion of the SBT panel.
   - Retake the placement module during the next academic year.
   - No retake of placement. This outcome would result in discontinuation for the QTS component of the programme. This is a likely outcome if the ITT code of conduct has been persistently breached resulting in a failed placement. The student might have an opportunity for an exit award without QTS depending on their profile.
   - If the placement has been terminated before the trainee reached the end of the module, and an alternative placement was not considered a suitable option due to breaches of the ITT code of conduct, the case would be referred for a FfP case investigation. A decision about a return to training would depend on the FfP case outcome.

2. **Lack of progress during a Professional Practice module**

If a trainee is not making expected progress at an assessment review point (see context statement below) that occurs before the Assessment Board, there are two possible outcomes:

- Trainee continues with support plan in place – or an action plan for rapid response if the trainee is within 4 weeks of the end of the placement module.
- No progression. In this situation, the panel would recommend either

    - Interruption of studies with return following academic year to complete the full module or Stage 2 (only) of the Professional Practice module. This decision will depend on the timing and is at the discretion of the panel
    - No return, if the trainee is not responding to additional support or has persistently breached the ITT code of conduct
    - Referral for FfP case panel if the placement has been terminated by the school or a serious concern about professional and personal misconduct.

Context

Trainees on postgraduate programmes undertake one long module of Professional Development (60 credits @ L6). The module incudes 24 weeks of school-based training and will take place in a minimum of two main school settings (Stage 1 and Stage 2). If a trainee is not making expected progress by the end of Stage 1, the school and university might agree that the trainee is not ready to progress to Stage 2 in a different school setting.

Annexe B

Annexe Relevant to Nursing and Midwifery students

1.0 Standards of professional conduct

Programme	Conduct guidance
Nursing/Nursing Associates	http://www.nmc.org.uk/standards/code/read-the-code-online/
Midwifery	http://www.nmc.org.uk/standards/code/read-the-code-online/
Veterinary Nursing	http://www.rcvs.org.uk/advice-and-guidance/code-of-professional-conduct-for-veterinary-nurses/pdf/

2.0 Nursing, Midwifery and Veterinary Nursing Fitness to Practice Committee membership

- Chair, Nursing & Midwifery and academic staff (1 to be appointed to act as Deputy Chair)
- Placement Provider representatives

Nursing & Midwifery Fitness to Practice case-panel membership

- Chair or Deputy Chair of the case-panel
- Minimum of 4 panel members
- Normally at least one member will reflect the area of practice of the student
- At least one placement provider representative

3.0 Arrangements for reporting and review of activities

A report of the activities of the Nursing & Midwifery FfP Committee will be undertaken each term and presented to the Faculty FfP Committee in the relevant AMR. A separate report dealing only with the pre-registration nursing and midwifery students will be reported to the NMC by the Faculty NMC Lead as required by the NMC.

4.0 Authority for determining whether a referral falls under the auspices of the FtP arrangement

Referrals to FfP will be determined by the he Chair of Care and Concern panel.

Given that the majority of cases follow proven plagiarism or a disciplinary hearing, and in order to support an efficient facilitation of the appeals process so that students are notified of the result in a reasonable timeframe, the review may be carried out electronically and there is no requirement for the student to attend a meeting as the University may well have already made a determination on those matters through other procedures. The student will be informed that they have the right to attend a meeting in person, should they so choose. In cases where the student has not already had an opportunity to present in person, a full hearing will be arranged for that purpose in order to consider the evidence.

In cases where the Case-panel chair and the student agree to an electronic review the Case-panel will normally be expected to complete the review and notify the FfP Officer of their recommendation within 5 working days of receipt of the case documents. The feedback from the Case-panel will be reviewed by the Chair and, within not later than 5 working days, a letter will be sent electronically and in hard copy to both the student and the referrer detailing the outcome of the panel's determination.

5.0 Additional requirements of the professional body in assessing FtP

In accordance with NMC code, plagiarism after year 1 upheld by the Academic Registry, should be reviewed by the Director of Programmes and Programme Leader and reported to the FfP committee via the FfP Officer

Discontinuation due to a Fitness to Practice Panel decision will mean the academic exit award made will reflect academic credit achieved, but have a non-professional title of:

- Cert HE Health, Social Care and Education or Healthcare Practice
- Dip HE Health, Social Care and Education or Healthcare Practice
- BSc Combined Studies
- BSc Hons Combined Studies

Annexe C

Royal College of Veterinary Surgeons (RCVS)

Refer to the *'Guide for UK Providers of Veterinary Nursing'* on the RCVS website:

Fitness to Practise: A Guide for UK Providers of Veterinary Nursing Education and Student Veterinary Nurses - Professionals (rcvs.org.uk)

Annexe D

Social Work Fitness for Practice Panel and Case-Panel Guidance

NB. This document is an annexe to Middlesex University's Fitness for Practice Framework and it should be read alongside.

1.0 Social Work England Professional Standards

Qualifying programmes are required to ensure that students are able to meet the suitability and conduct requirements for registration at completion of their studies. This requirement applies to the admission of students, and throughout the programme (Education and Training Standards 1.4; 1.6; 5.3).

The relevant professional standards are:

Social Work England Professional Standards
https://www.socialworkengland.org.uk/standards/professional-standards/

The relevant education and training standards are:

Social Work England Education and Training Standards 2021
https://www.socialworkengland.org.uk/standards/education-and-training-standards

2.0 Functions of the Social Work FfP Panel and Case-Panels

Social Work qualifying programmes are required to carry out Fitness for Practice investigations where there are concerns relating to the conduct, character or health of a student, to ensure that they remain suitable for the practice of social work and that they can interact safely with people with lived experience of social work and others (Educations and Training Standard 5.3). The Social Work FfP Panel undertakes this function via case-panels, which are constituted when a referral of a FfP concern is received.

Social Work FfP case-panels operate under the auspices of the Middlesex University Fitness for Practice Framework.

3.0 Social Work Fitness for Practice Panel membership

- Chair- Professional Lead for Social Work
- 3 members of Social Work academic staff (minimum) including one appointed as Deputy Chair
- 4 qualified social workers from placement partners (minimum)

- Placements Academic Lead
- FfP administration officer.

3.1 Social Work Fitness for Practice Case-Panels

Case-panels may be constituted when a referral of a FfP concern is received. The procedures involved are detailed in the University FfP Framework.

Examples of matters that may be sent to the panel for review include (but are not limited to):

- Student health concerns resulting in unsatisfactory conduct and/or performance on placement, for example, frequent periods of absence
- Any behaviour on placement that, if the student was an employee, would or would likely result in them being subject to the placement organisation's disciplinary policy
- Breaches of Social Work England's Professional standards
- Breaches of the University's 'Student conduct and discipline Rules'

Referrals to the panel may be as a result of placement fail/termination reviews, recommendation from a duly constituted Practice Quality Assurance Panel, or as a result of information shared by a placement staff member e.g a practice supervisor, practice educator, service user carer and/or the student's programme leader.

Membership of the case-panels:

- Chair or Deputy Chair of the sub-panel
- Minimum of 3 panel members, including the chair
- At least one member will be an external qualified social worker, from a placement providing agency.
- FfP administration officer.

4.0 Arrangements for reporting and review of activities

A report of the activities of the Social Work FfP Panel will be undertaken at the end of each academic year and reported in the SWE Annual Monitoring Report.

5.0 Conduct of reviews

Reviews will be undertaken either in person or electronically by review of case documents.

Arrangements for electronic review

In cases where the case-panel chair and the student agree to an electronic review, the case-panel will normally be expected to complete the review and notify the Administrative Officer of their

recommendation within 5 working days of receipt of the case documents. The feedback from the case-panel will be reviewed by the Chair and, within not later than 5 working days, a letter will be sent electronically and in hard copy to both the student and the referrer detailing the outcome of the panel's determination.

6.0 Social Work FfP Case- Panel activities and outcomes

Please see Middlesex University Fitness for Practice Framework for further details on case-panels, including appeals process.

The following outcomes may be reached by the Social Work FfP case-panel.

-That the student may continue on their social work programme without any further action;

-Recommend that the student is allowed to continue on their social work programme with specified conditions and review dates;

-To suspend and/or interrupt the student pending the satisfaction by them of specified conditions within a defined timeframe; or

-Recommend to the Chair of the relevant Assessment Board that the student is discontinued from their social work programme with immediate effect. In this case, the student will be invited to discuss their options for transferring to another non-professional course within the University.

23.11.22

Annexe E – Faculty of Science & Technology

Annexe E.1 - BSc Sport & Exercise Rehabilitation

Annex E.2 - Annexe Relevant to Health and Care Professions Council (HCPC) Approved Programmes and National School of Healthcare Science Accredited Programmes

Annexe E.3 - Annexe Relevant to The Chartered Institute of Environmental Health (CIEH) Accredited Programmes for the Environmental Health (Apprenticeship) BSc (Honours)

Annexe E.4 - Annexe Relevant to Institution of Occupational Safety and Health (IOSH) Accredited Programmes for the Professional Risk and Safety Management (Degree Apprenticeship) MSc

Annexe E

Annexe E.1 - BSc Sport & Exercise Rehabilitation

1.0 Standards of professional Fit to Practice

Programme	BASRaT Fit to Practice guidelines
BSc Sport & Exercise Rehabilitation	https://www.basrat.org/member/fitnesstopractise BASRaT Standards of Ethical Conduct and Behaviour (SECB) Role Delineation

2.0 Sport & Exercise Rehabilitation Fitness to Practice Committee membership

- Chair, Sport & Exercise Rehabilitation and academic staff (1 to be appointed to act as Deputy Chair).
- Placement Provider representatives.

Sport & Exercise Rehabilitation Fitness to Practice case-panel membership

- Chair or Deputy Chair of the case-panel
- Minimum of 4 panel members
- Normally at least one member will reflect the area of practice of the student
- At least one placement provider representative

3.0 Arrangements for reporting and review of activities

A report of the activities of the Sport & Exercise Rehabilitation FfP Committee will be undertaken each term and presented to the Faculty FfP Committee in the relevant AMR. A separate report dealing only with pre-registration Sport & Exercise Rehabilitation students will be reported to BASRaT by the Sport & Exercise Rehabilitation programme lead as required by BASRaT.

4.0 Authority for determining whether a referral falls under the auspices of the FtP arrangement

Referrals to FfP will be determined by the he Chair of Care and Concern panel.

Given that the majority of cases follow proven plagiarism or a disciplinary hearing, and in order to support an efficient facilitation of the appeals process so that students are notified of the result in a reasonable timeframe, the review may be carried out electronically and there is no requirement for the student to attend a meeting as the University may well have already made a determination on those matters through other procedures. The student will be informed that they have the right to attend a meeting in person, should they so choose. In cases where the student has not already had an opportunity to present in person, a full hearing will be arranged for that purpose in order to consider the evidence.

In cases where the case-panel chair and the student agree to an electronic review the case-panel will normally be expected to complete the review and notify the FfP Officer of their recommendation within 5 working days of receipt of the case documents. The feedback from the case-panel will be

reviewed by the Chair and, within not later than 5 working days, a letter will be sent electronically and in hard copy to both the student and the referrer detailing the outcome of the panel's determination.

5.0 Additional requirements of the professional body in assessing FtP

In accordance with BASRaT code, plagiarism after year 1 upheld by the Academic Registry, should be reviewed by the Director of Programmes and Programme Leader and reported to the FfP committee via the FfP Officer.

Discontinuation due to a Fitness to Practice Panel decision will mean the academic exit award made will reflect academic credit achieved, but have a non-professional title of:

- Generic Sport Science Cert HE
- Generic Sport Science Dip HE
- Generic Sport Science BSc

Annexe E.2 - Annexe Relevant to Health and Care Professions Council (HCPC) Approved Programmes and National School of Healthcare Science Accredited Programmes

1. **Standards of professional conduct**

Programmes	**Conduct guidance**
Health and Care Professions Council Approved Programmes (Applied Biomedical Science)	https://www.hcpc-uk.org/globalassets/resources/guidance/guidance-on-conduct-and-ethics-for-learners.pdf https://www.hcpc-uk.org/globalassets/consultations/2021/health-and-character-guidance/revised-guidance-on-health-and-character-for-applicants-and-registrants.pdf
National School of Healthcare Science Accredited Programmes (Healthcare Science Programmes)	https://www.ahcs.ac.uk/wpfd_file/ahcs-good-scientific-practice-2021/ https://www.hcpc-uk.org/globalassets/consultations/2021/health-and-character-guidance/revised-guidance-on-health-and-character-for-applicants-and-registrants.pdf

2. **Subject Fitness for Practice Committee membership**

- Chair (Head of Department or a senior academic (professor or associate professor) appointed by the Head of Department)
- Deputy Chair: Directors of Programmes
- Subject Programme Leaders
- Placement providers
- At least 1 service user representative

Fitness for Practice Case-Panel membership
The Subject Fitness for Practice Committee will appoint the case-panel, which will be drawn from the Committee, and typically will comprise:

- Chair or Deputy Chair of the sub-panel
- Up to 2 Programme Leaders
- 1 senior practitioner from a placement provider
- 1 service user representative
- 1 health and disability support representative may be co-opted as necessary

3. **Arrangements for reporting and review of activities**

A report of the activities of the Biomedical and Healthcare Sciences FfP Committee will be undertaken each term and presented to the Faculty FfP Committee in line with the Faculty's monitoring process. A summary of the report, excluding information about students, will also be considered at either the Biomedical Science Liaison Group or the Healthcare Science Partnership Board meetings with service users, placement providers and employers.
Authority for determining whether a referral falls under the auspices of the FfP arrangement.
In consultation with the Director of Programmes, the Chair of Care and Concern Team will determine whether the student has a case to answer and refer the case, if deemed necessary, to the Subject

FfP committee, in line with the Fitness for Practice Policy and Procedures.

4. Additional requirements of the statutory body in assessing FfP

A professional conduct and clinical competence are assessed continually throughout the programme as part of the practice-based module. Students, who fail to achieve the required standard for professional conduct or competence, will fail the practice-based module without any further opportunity to be reassessed or to repeat it. It should be noted that the student will not be referred to the Care and Concern Team.
The HCPC expects students to maintain a high standard of conduct, including academic honesty and integrity. Academic misconduct, therefore, is considered to be a serious breach of this standard, so all cases of academic misconduct that have been upheld by Academic Registry will be reviewed by the Director of Programme and Programme Leader and then reported to FfPP by FfP Officer.
If the Fitness for Practice Panel's decision is for the student to discontinue their studies on the professional programme, the student is eligible for a non-professional exit award that reflects the number of academic credits achieved. Below is the list of the non-professional exit awards available to students.

Professional Awards	**Non-professional Exit Awards**
BSc Applied Biomedical Science	Cert HE Biomedical Science DipHE Biomedical Science BSc Biomedical Science
BSc Healthcare Science (Audiology) BSc Healthcare Science (Cardiac Physiology) BSc Healthcare Science (Neurophysiology)	Cert HE Healthcare Science DipHE Healthcare Science BSc Healthcare Science

Annexe E.3 - Annexe Relevant to The Chartered Institute of Environmental Health (CIEH) Accredited Programmes for the Environmental Health (Apprenticeship) BSc (Honours)

1. **Standards of professional conduct**

Programmes	**Conduct guidance**
The Chartered Institute of Environmental Health (CIEH) Accredited Programmes	code-of-ethics-for-members-and-ftp.pdf (cieh.org)

2. **Subject Fitness for Practice Committee membership**

- Chair (Head of Department or a senior academic (professor or associate professor) appointed by the Head of Department)
- Deputy Chair: Directors of Programmes
- Environmental Health academics
- Apprentice professional work employers

Fitness for Practice Case-Panel membership
The Subject Fitness for Practice Committee will appoint the case-panel, which will be drawn from the Committee, and typically will comprise:

- Chair or Deputy Chair of case panel
- Up to 2 academic staff
- 1 senior EHP, or employer may be co-opted as appropriate
- 1 health and disability support representative may be co-opted as necessary

3. **Arrangements for reporting and review of activities**

A report of the activities of the Environmental Health FfP Committee will be undertaken each term and presented to the Faculty FfP Committee in line with the Faculty's monitoring process. A summary of the report will also be considered at the Environmental Health Partnership Board meetings with employers. A summary report will be held in readiness for Ofsted Inspections.
Authority for determining whether a referral falls under the auspices of the FfP arrangement.
In consultation with the Director of Programmes, the Chair of Care and Concern Team will determine whether the student has a case to answer and refer the case, if deemed necessary, to the Subject FfP committee, in line with the Fitness for Practice Policy and Procedures.

4. **Additional requirements of the statutory body in assessing FfP**

The CIEH expects professionals to maintain a high standard of conduct, including honesty and integrity. Academic misconduct, therefore, is considered to be a serious breach of this standard, so all cases of academic misconduct that have been upheld by Academic Registry will be reviewed by the Director of Programme and Programme Leader and then reported to FfPP by FfP Officer.
If the Fitness for Practice Panel's decision is for the student to discontinue their studies on the professional programme, the student is eligible for a non-professional exit award that reflects the number of academic credits achieved. Below is the list of the non-professional exit awards available to students.

Professional Awards	Non-professional Exit Awards
BSc Environmental Health (Apprenticeship)	Cert HE Environmental Health Diploma HE Combined Studies

Annexe E.4 - Annexe Relevant to Institution of Occupational Safety and Health (IOSH) Accredited Programmes for the Professional Risk and Safety Management (Degree Apprenticeship) MSc

1. **Standards of professional conduct**

Programmes	Conduct guidance
Institution of Occupational Safety and Health (IOSH) Accredited Programmes	COR4569 The Code of Conduct, Guidance and Disciplinary Procedure v2.indd (iosh.com)

2. **Subject Fitness for Practice Committee membership**

- Chair (Head of Department or a senior academic (professor or associate professor) appointed by the Head of Department)
- Deputy Chair: Directors of Programmes
- Occupational Safety and Health (OSH) academics
- Apprentice professional work employer

Fitness for Practice Case-Panel membership
The Subject Fitness for Practice Committee will appoint the case-panel, which will be drawn from the Committee, and typically will comprise:

- Chair or Deputy Chair of the case-panel
- Up to 2 academic staff
- 1 senior OSH practitioner, or apprentice professional work employer may be co-opted as appropriate
- 1 health and disability support representative may be co-opted as necessary

3. **Arrangements for reporting and review of activities**

A report of the activities of the Occupational Safety and Health FfP Committee will be undertaken each term and presented to the Faculty FfP Committee in line with the Faculty's monitoring process. A summary of the report will also be considered at either the Occupational Safety and Health Partnership Board meetings with professional work employers. A summary report will be held in readiness for Ofsted Inspections.
Authority for determining whether a referral falls under the auspices of the FfP arrangement.
In consultation with the Director of Programmes, the Chair of Care and Concern Team will determine whether the student has a case to answer and refer the case, if deemed necessary, to the Subject FfP committee, in line with the Fitness for Practice Policy and Procedures.

4. **Additional requirements of the statutory body in assessing FfP**

IOSH expects professionals to maintain a high standard of conduct, including honesty and integrity. Academic misconduct, therefore, is considered to be a serious breach of this standard, so all cases of academic misconduct that have been upheld by Academic Registry will be reviewed by the Director of Programme and Programme Leader and then reported to FfPP by FfP Officer.

If the Fitness for Practice Panel's decision is for the apprentice to discontinue their studies on the professional programme, the student is eligible for a non-professional exit award that reflects the number of academic credits achieved. Below is the list of the non-professional exit awards available to apprentices.

Professional Awards	**Non-professional Exit Awards**
MSc Occupational Health, Safety and Environmental Management	Postgraduate Certificate in Occupational Health, Safety and Environmental Management Postgraduate Diploma in Occupational Health, Safety and Environmental Management
MSc Occupational Health, Safety and Well-Being Management	Postgraduate Certificate in Occupational Health, Safety and Well-Being Management Postgraduate Diploma in Occupational Health, Safety and Well-Being Management